

L&Aser™ Dual Licensing Summary



L&Aser Public Use License

Based on SSPL v1 + CERN OHL v2-S

Version 1.4 - 5 August 2026

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Version Notice

This Version 1.4 supersedes the L&Aser™ Dual Licensing Summary Version 1.3 on a prospective basis, except with respect to rights that cannot lawfully be revoked, prior written commercial agreements signed by Laudando & Associates LLC, or obligations that accrued under earlier versions before publication of this Version 1.4.

Before publication of this Version 1.4, Laudando & Associates LLC had not issued the written declaration or public notice contemplated by Section 9.6 to activate the Strategic Access Fallback. L&A's 30 July 2026 Notice of Intended Activation expressly stated that it was not a Section 9.6 declaration, granted no license rights, and released no technical materials. Accordingly, no Strategic Access Fallback rights became effective under Version 1.3.

Any Strategic Access Fallback declaration issued on or after publication of this Version 1.4 shall be governed exclusively by this Version 1.4, including the No Acquisition Cleansing provision in Section 9.12.

This Version 1.4 preserves the anti-suppression function of the prior provisions while clarifying that fallback access does not surrender ownership of the L&Aser™ Patent, waive Issued Patent Rights, eliminate royalty obligations, grant free commercial farming use, or create an acquisition safe harbor.

The fallback is an access mechanism, not a surrender of ownership.

Overview

The patented L&Aser™ is a modular laser weeding tool combining hardware, firmware, and software. It is the highest-throughput, lowest-\$/watt laser weeding technology on the planet, and is highly disruptive to the incumbent GM-seed + chemical herbicide paradigm of modern agriculture.

We offer our technology to the world through a dual-licensing model that is designed to maximize adoption and protect commercial value. This model is intended to force corporate incumbents into competition with each other through commercial licensing tiers, or else face creative destruction by independent farmers, researchers, and the open-use component of this dual license.

Patent Notice

The L&Aser™ platform is covered by **U.S. Patent No. 12,677,822 B2**, titled “**Cultivating Methods and Apparatuses**,” issued and grant-published on **July 14, 2026**.

The patent was filed as **U.S. Application No. 18/457,151** on **August 28, 2023**, and was previously published as **US 2023/0397597 A1** on **December 14, 2023**.

The patent lists **Laudando & Associates LLC** as Applicant and Assignee, and lists **Nicholas Charipar, Chris Laudando, and Matt O'Brien** as inventors. All references in this License to the “L&Aser™ Patent” include U.S. Patent No. 12,677,822 B2.

All references in this License to “Issued Patent Rights” include U.S. Patent No. 12,677,822 B2, any continuation, continuation-in-part, divisional, reissue, reexamination certificate, foreign counterpart, PCT national-stage patent, and any other patent right owned, controlled, assigned to, licensed by, or enforceable by Laudando & Associates LLC, Christopher William Laudando, or any successor, assignee, affiliate, trust, estate, or controlled entity covering the L&Aser™ platform or its use.

License Scope by Component

Software

L&Aser™ only, excludes AgCeption™

License: SSPL v1, independent farmers or research institutions.

Notes: Open use permitted, but commercial use triggers license.

Firmware: L&Aser™ only, excludes AgCeption™

License: SSPL v1, independent farmers or research institutions.

Notes: Same terms as software.

Reference Hardware Designs: L&Aser™ only, excludes AgCeption™

License: CERN OHL v2-S.

Notes: Open for independent farmers and research institutions; commercial use must license.

Patented Core IP: L&Aser™ only, excludes AgCeption™

License: Proprietary, commercial only, not included with small OEM open commercial use tier except as expressly stated herein.

Notes: No use, replication, manufacture, sale, offer for sale, importation, commercial deployment, or commercial farming use is permitted without a written commercial agreement or an express conditional patent license under the Strategic Access Fallback and Conditional Patent License.

No publication, disclosure, open software release, firmware release, reference hardware release, research access, demonstration, repository publication, or open-use license shall be interpreted as granting a free patent license for commercial farming use.



Commercial Use License Tiers

User Category	Annual Base Fee	NRE Support	Per-Unit Fee	Extras	Revocation Triggers
Large OEMs, including John Deere, CNH, AGCO, Kubota, etc.	\$50M	\$10M+	\$1,000 per ft. machine sold or operated annually	33% SaaS share, exclusivity +	Sublicensing, non-performance, reverse engineering, unauthorized use, unauthorized resale, anti-competitive litigation.
AgroChem, including Bayer, Syngenta, BASF, Corteva, etc.	\$20M	\$5M+			
Spray Services, including Helena, Nutrien, Wilbur-Ellis, etc.	\$5M	\$5M+			
OEMs & Integrators, \$10M-\$100M annual revenue	\$5M	\$2M+	\$25k/module		
AgTech Peers, including Pixelfarming, Escarda, Stout, ecorobotix, etc.	\$1M	\$2M+	\$25k/module		

Open Use License Tiers

User Category	Open License / Cost	Restrictions	Revocation Triggers
Small Builders, less than \$10M annual revenue	SSPL + CERN-OHL with restrictions \$0	Auto termination clause, audit rights, no sublicensing	More than \$10M annual revenue
Independent Farmers	SSPL + CERN-OHL \$0	Attribution required	Tech commercialization exceeding \$10M annual revenue
Research Institutions	SSPL + CERN-OHL \$0	Attribution + publish	Misuse, hostile research

Strategic Access Fallback Summary

If commercial actors engage in hostile litigation, coercive threats, anti-competitive suppression, demands to abandon global commercialization, personal retaliation, platform embargo, cooperation embargo, patent trolling, or other bad-faith behavior designed to suppress, delay, disable, monopolize, or remove the L&Aser™ platform from global agricultural commercialization, Laudando & Associates LLC may activate broad access to the L&Aser™ platform.

Commercial farming use under such fallback access remains subject to the L&Aser™ Patent, U.S. Patent No. 12,677,822 B2, and requires a 1.0% royalty on Covered Commercial Farming Revenue, subject to the Commercial Exclusion Clause and any existing court orders.

Fallback rights are personal, non-transferable, and transaction-specific. A merger, acquisition, investment, asset purchase, license, joint venture, change of control, or successor transaction does not create or transfer eligibility, does not extend an eligible party's rights to acquired technology, and does not cure or release pre-transaction acts. Acquired entities and technologies require L&A's express written authorization under Section 9.12.

Terms & Conditions

1. License Grant

You are granted the right to use, modify, and redistribute the L&Aser™ Software, Firmware, and Hardware under the conditions outlined in this license.

2. Commercial Use Restriction

If you make the L&Aser™ Software, Firmware, Hardware, or any modified version available to third parties as part of a service, including field robotics, automated weeding systems, or decision-support platforms, you must release the entire source code of your system under this same license, including but not limited to:

- All orchestration and scheduling systems;
- All telemetry and data aggregation services;
- All integration code used to embed the L&Aser™ technology into hardware systems;
- Any firmware, control loops, diagnostics, or visualization layers.

3. Prohibited Circumvention

You may not use containers, wrappers, or proxy APIs to avoid sharing code that would otherwise be required under this license.

4. Branding and Certification

Use of the L&Aser™ name, branding, certification logos, or affiliation with Laudando & Associates LLC is not granted under this license and requires separate authorization.

5. Hardware Reference Designs

Reference hardware designs are governed separately by the CERN OHL v2-S.

Commercial use of hardware derived from these designs must comply with that license, and the combination of such hardware with L&Aser™ Software or Firmware constitutes a system subject to the terms herein.

6. Patents and Trade Secrets

No license is granted to any proprietary patents or trade secrets of Laudando & Associates LLC except as expressly stated in a signed written commercial agreement or in the Strategic Access Fallback and Conditional Patent License set forth below.

The L&Aser™ Patent, U.S. Patent No. 12,677,822 B2, all Issued Patent Rights, and all proprietary trade secrets of Laudando & Associates LLC are exclusively the property of Laudando & Associates LLC, Christopher William Laudando, or any successor, assignee, affiliate, trust, estate, or controlled entity, as applicable.

No grant or right to profit share is granted to Licensees except as expressly set forth in a written commercial agreement or in the Strategic Access Fallback and Conditional Patent License.

For avoidance of doubt, open access to software, firmware, reference hardware designs, documentation, demonstrations, repositories, or public-use materials does not waive the L&Aser™ Patent and does not grant a free patent license for commercial farming use.

7. Commercial Exclusion Clause

Pursuant to the preliminary injunction placed upon Laudando & Associates LLC by the U.S. District Court, Eastern District of California in Case No. 2:24-cv-03012-DAD-JDP, commercial licensing for the L&Aser Alpha/Beta/Beta+ is unavailable in the United States of America except for small OEMs, machine builders, integrators, and service providers under \$10M annual revenue.

To discuss technology transfer agreements into innovation-friendly countries that do not violate the U.S. District Court order, please contact Laudando & Associates LLC.

Nothing in this License shall be interpreted to authorize Laudando & Associates LLC, any licensee, any commercial user, or any third party to violate the preliminary injunction entered by the U.S. District Court for the Eastern District of California in Case No. 2:24-cv-03012-DAD-JDP, or any other binding court order applicable to L&Aser Alpha, L&Aser Beta, L&Aser Beta+, or any covered embodiment.

8. Affiliate Exclusion Clause

To the extent that open commercial use is allowable to small OEMs, machine builders, integrators, and service providers under the terms of this License, any use, commercial profit share, sublicensing, and all other schemes of licensing avoidance and circumvention by small OEM, machine builder, integrator, and service provider affiliates and affiliate partners is expressly forbidden.

For purposes of this Clause, any Covered Transaction defined in Section 9.12 is deemed a transfer. No merger, acquisition, investment, joint venture, change of control, affiliate arrangement, or similar transaction may be used to convert an otherwise ineligible party into an eligible small OEM, machine builder, integrator, or service provider, or to obtain rights through an eligible affiliate.

9. Strategic Access Fallback and Conditional Patent License

9.1 Purpose

The purpose of this Strategic Access Fallback is to ensure that the L&Aser™ platform cannot be suppressed, delayed, monopolized, or removed from global agricultural commercialization through hostile litigation, legal intimidation, coercive correspondence, anti-competitive conduct, personal retaliation, or demands that Laudando & Associates LLC abandon or restrict commercialization after issuance of its patent rights.

This provision is intended to preserve broad access to the L&Aser™ platform while maintaining a royalty-bearing patent enforcement mechanism for commercial farming use.

9.2 Patent Grant Date and Issued Patent Rights

For purposes of this License, the “Patent Grant Date” means July 14, 2026, the date on which U.S. Patent No. 12,677,822 B2, titled “Cultivating Methods and Apparatuses,” issued to Laudando & Associates LLC.

All references to “Issued Patent Rights” include U.S. Patent No. 12,677,822 B2, any continuation, continuation-in-part, divisional, reissue, reexamination certificate, foreign counterpart, PCT national-stage patent, or other patent right covering the L&Aser™ platform, its method of operation, laser-weeding architecture, control system, hardware configuration, treatment method, agricultural use, or commercial farming use.

9.3 Covered Commercial Farming Revenue

“Covered Commercial Farming Revenue” means all gross commercial revenue derived from crops, field operations, crop-protection services, weeding services, autonomous field services, custom farming, farm-management operations, or agricultural production activities in which the L&Aser™ platform, or any derivative, equivalent, replacement, or modified version thereof, is used.

For crop-production use, Covered Commercial Farming Revenue includes revenue from crops grown on acreage, blocks, beds, rows, orchards, vineyards, greenhouses, or other production areas where L&Aser™ is used during the relevant crop cycle.

For service-provider use, Covered Commercial Farming Revenue includes fees, service revenue, subscription revenue, per-acre revenue, per-pass revenue, per-hour revenue, fleet-management revenue, or other consideration received in connection with L&Aser-enabled agricultural operations.

Covered Commercial Farming Revenue shall be calculated before deduction of profit, overhead, financing costs, depreciation, equipment cost, labor cost, software cost, water cost, input cost, insurance cost, interest, taxes, or other operating expense, but may exclude bona fide refunds, returns, sales taxes, and government-imposed pass-through charges.

9.4 Covered Jurisdictions

“Covered Jurisdictions” means the United States, Canada, the United Kingdom, the European Union, the European Economic Area, Switzerland, Australia, New Zealand, Japan, South Korea, Israel, and any other allied or rule-of-law jurisdiction in which Laudando & Associates LLC maintains, pursues, licenses, or commercializes L&Aser™ technology or related patent rights.

Threats, correspondence, or proceedings occurring solely in the People’s Republic of China, the Russian Federation, or any jurisdiction subject to comprehensive U.S. sanctions, export restrictions, or otherwise designated by Laudando & Associates LLC as hostile to U.S. interests shall not, by themselves, constitute a Trigger Event under this section.

9.5 Trigger Events

The Strategic Access Fallback may be activated by Laudando & Associates LLC upon the occurrence of any of the following events after the Patent Grant Date or after publication of this License version, whichever occurs first.

9.5(a) Hostile Litigation

Any new, continued, expanded, amended, funded, supported, threatened, or coordinated litigation, arbitration, administrative proceeding, patent-office proceeding, trade-secret claim, injunction request, restraining order request, customs action, import/export complaint, takedown request, regulatory complaint, or other legal action in any Covered Jurisdiction that is directed against:

- Laudando & Associates LLC;
- the L&Aser™ platform;
- any L&A LLC business matter;
- Christopher William Laudando;
- Christopher William Laudando's spouse, children, family, estate, trust, household, controlled entities, or personal affairs;
- any licensee, collaborator, farmer, researcher, builder, integrator, or commercialization partner using or evaluating L&Aser™ technology.

This applies whether the action is expressly related to L&Aser™ or is nominally framed as another business, personal, contractual, employment, trade-secret, defamation, tort, family, property, or other matter, if Laudando & Associates LLC reasonably determines that the action is coercive, retaliatory, suppressive, anti-competitive, or intended to influence L&A's commercialization decisions.

9.5(b) Threatening Correspondence

Any additional cease-and-desist letter, demand letter, litigation threat, settlement demand, abandonment demand, commercialization restriction demand, warning letter, reservation-of-rights letter, patent-infringement allegation, trade-secret allegation, or other threatening correspondence sent in or from any Covered Jurisdiction by a commercial actor, competitor, investor, funder, affiliate, law firm, agent, or party acting in concert with such actor.

For avoidance of doubt, additional threatening correspondence alone may constitute a Trigger Event. Formal filing of a lawsuit is not required.

9.5(c) Demands to Abandon Global Commercialization

Any future request, demand, proposed settlement term, contractual condition, investor condition, licensing condition, court-requested concession, or other communication seeking to cause Laudando & Associates LLC, Christopher William Laudando, or any successor or controlled entity to abandon, delay, restrict, geographically limit, transfer, surrender, assign, encumber, or otherwise impair global commercialization of L&Aser™ after the Patent Grant Date.

This includes any request to abandon commercialization outside the United States, abandon technology-transfer efforts, cease international licensing, restrict commercialization to a single jurisdiction, surrender foreign patent rights, or refrain from working with international farmers, researchers, OEMs, integrators, or commercialization partners.

9.5(d) Anti-Competitive Suppression

Any attempt by a commercial actor or coordinated group of commercial actors to suppress L&Aser™ through cartel activity, market allocation, boycott, cooperation embargo, platform embargo, funding interference, customer intimidation, supplier intimidation, affiliate circumvention, reverse engineering, unauthorized sublicensing, predatory litigation, patent trolling, procurement interference, or other conduct reasonably determined by Laudando & Associates LLC to impair open and competitive commercialization.

9.5(e) Personal Safety or Coercive Retaliation Trigger

Any suspicious, violent, unexplained, coercive, retaliatory, or unlawful act directed toward Christopher William Laudando, his immediate family, household, estate, trust, or controlled entities, including credible threats, disappearance, incapacitation under suspicious circumstances, or other conduct reasonably interpreted by Laudando & Associates LLC, a trustee, spouse, public authority, or independent verifier as intended to suppress, intimidate, retaliate against, or influence L&A's business or commercialization decisions.

Death, incapacity, disappearance, or loss caused by clearly documented natural causes, ordinary accident, or other non-coercive act shall not constitute a Trigger Event.

9.6 Effect of Trigger Event

Upon written declaration or public notice by Laudando & Associates LLC that a Trigger Event has occurred, the L&Aser™ platform shall become available under the Strategic Access Fallback License.

The Strategic Access Fallback License grants broad, non-exclusive, worldwide access to use, study, modify, manufacture, integrate, deploy, and commercialize the L&Aser™ platform, subject to the royalty, reporting, patent-license, attribution, safety, and compliance obligations stated herein.

This fallback access shall apply to farmers, researchers, independent builders, AgTech peers, OEMs, integrators, spray-service providers, crop-protection companies, equipment companies, agrochemical companies, and other agricultural users, except as otherwise excluded or suspended below, including under Sections 9.11 and 9.12.

9.7 One Percent Commercial Farming Royalty

Any commercial farming use of L&Aser™ under the Strategic Access Fallback License shall require payment to Laudando & Associates LLC of a royalty equal to one percent (1.0%) of Covered Commercial Farming Revenue.

This royalty applies regardless of whether the user obtains the L&Aser™ platform through published source code, hardware files, firmware, reference designs, third-party integration, independent manufacture, derivative implementation, field-service offering, OEM product, retrofit kit, or any equivalent system practicing the Issued Patent Rights.

The 1.0% royalty is consideration for the conditional patent license granted herein and is not waived by publication, disclosure, open hardware availability, open software availability, or any release of reference materials.

9.8 Conditional Patent License

Subject to timely royalty payment, reporting, attribution, compliance with this License, and the eligibility limitations in Sections 9.11 and 9.12, Laudando & Associates LLC grants each compliant user a limited, non-exclusive, non-transferable, non-sublicensable, royalty-bearing patent license under the Issued Patent Rights solely to practice L&Aser™ in commercial farming operations covered by this License.

No conditional patent license is granted with respect to Acquired Technology unless and until L&A expressly authorizes that specific Acquired Technology in a signed writing under Section 9.12.

Failure to report Covered Commercial Farming Revenue, failure to pay the 1.0% royalty, concealment of covered acreage or covered revenue, use through an undisclosed affiliate, or circumvention of the royalty obligation shall automatically terminate the conditional patent license as to the non-compliant party.

Upon termination, any continued making, using, selling, offering for sale, importing, deploying, or commercially benefiting from L&Aser™ or any covered derivative may be treated as unlicensed use of the Issued Patent Rights, in addition to any contractual, equitable, statutory, or other remedies available to Laudando & Associates LLC.

For avoidance of doubt, broad access to software, firmware, reference hardware designs, or documentation does not waive the Issued Patent Rights and does not grant a free patent license for commercial farming use.

9.9 Reporting and Audit

Each commercial user operating under the Strategic Access Fallback License shall maintain accurate records sufficient to calculate Covered Commercial Farming Revenue, including acreage, crop type, field location, operating dates, machine usage, service revenue, crop revenue, customer invoices, and other commercially reasonable records.

Royalty reports and payments shall be due quarterly unless otherwise agreed in writing.

Laudando & Associates LLC shall have audit rights sufficient to verify compliance. If an audit reveals underpayment, concealment, affiliate circumvention, or material misreporting, the user shall pay all unpaid royalties, interest, audit costs, enforcement costs, and any additional remedies available under law or contract.

9.10 No Royalty Avoidance by OEMs, Integrators, or Service Providers

No OEM, integrator, service provider, grower platform, crop-protection company, distributor, dealer, affiliate, or intermediary may use the Strategic Access Fallback License to avoid the 1.0% Covered Commercial Farming Revenue obligation.

Any party that manufactures, sells, leases, integrates, finances, services, hosts, controls, or enables L&Aser™ systems for commercial farming use must ensure that downstream commercial farming users are bound to the 1.0% royalty obligation or must assume that obligation directly.

No sale, lease, integration, or deployment of L&Aser™ hardware, software, firmware, or derivatives shall be deemed to waive or satisfy the Issued Patent Rights unless the required commercial farming royalty has been reported and paid.

9.11 Triggering Party Limitation

Any party whose conduct caused, funded, coordinated, threatened, or materially supported a Trigger Event, together with its affiliates, successors, assigns, litigation funders, controlled entities, and parties acting in concert, shall not receive the benefit of the Strategic Access Fallback License unless Laudando & Associates LLC expressly grants such access in writing.

Laudando & Associates LLC may condition any such access on dismissal with prejudice of hostile claims, withdrawal of threatening correspondence, written release of claims, payment of enforcement costs, public correction of prior threats, or other commercially reasonable conditions.

A Covered Transaction does not extinguish, narrow, or cleanse an exclusion under this Section. Section 9.12 applies independently to the Triggering Party, its affiliates, its Acquired Technology, and any successor or combined system.

9.12 No Acquisition Cleansing; Transaction, Change-of-Control, and Successor Limitations

9.12(a) Definitions

For purposes of this Section:

“Covered Transaction” means any direct or indirect merger, consolidation, stock or equity purchase, asset purchase, acquisition, recapitalization, reorganization, joint venture, strategic alliance, exclusive or substantially exclusive license, assignment, technology transfer, change of control, investment that confers Control, or series of related transactions.

“Control” means the direct or indirect power, by ownership, contract, board representation, veto right, financing condition, or otherwise, to direct or materially influence the management, development, commercialization, licensing, use, or disposition of an entity or technology.

“Acquired Technology” means any entity, business, product, platform, system, machine, module, component, software, firmware, hardware, design, documentation, data, know-how, patent right, or other asset obtained, licensed, financed, controlled, or materially supported through a Covered Transaction.

9.12(b) No Automatic Eligibility, Transfer, or Cleansing

No Covered Transaction shall create, restore, expand, transfer, assign, sublicense, convey, or cleanse eligibility under the Strategic Access Fallback or the Conditional Patent License. Rights granted under this License are personal to the eligible user and do not pass by merger, operation of law, successor status, affiliate status, name change, asset transfer, stock purchase, or change of control, except through L&A’s express written authorization under Section 9.12(g).

9.12(c) Two-Way Acquisition Rule

- (i) Acquisition of an Eligible User. If an eligible user becomes subject to a Covered Transaction, all Strategic Access Fallback and Conditional Patent License rights of that user automatically suspend as of closing unless L&A expressly confirms continuation in a signed writing.
- (ii) Acquisition by an Eligible User. An eligible user’s pre-existing rights do not extend to Acquired Technology. Acquired Technology remains outside the Strategic Access Fallback and Conditional Patent License unless L&A expressly authorizes the specific entity, product, platform, or technology in a signed writing.
- (iii) Independent Technology. Subject to all other terms, a non-triggering acquiring party may retain eligibility for technology independently developed and documented before the Covered Transaction, but must demonstrate independent provenance and separation from Acquired Technology upon L&A’s reasonable written request.

9.12(d) No Retroactive Cure, Release, or Authorization

No Covered Transaction, fallback activation, royalty payment, royalty report, later eligibility, or later written authorization shall:

- authorize any act occurring before the effective date expressly stated in L&A's written authorization;
- cure or release past infringement, inducement, contributory infringement, breach, misuse, concealment, or other liability;
- waive damages, injunctive relief, audit rights, enforcement costs, or any other remedy; or
- convert previously unlicensed products, systems, deployments, sales, offers, imports, uses, or services into licensed acts.

Any release of past conduct must be contained in a separate signed writing that specifically identifies the released parties, products or technologies, acts, jurisdictions, and time period.

9.12(e) Triggering Parties and Excluded Assets

A Covered Transaction involving a party excluded under Section 9.11 does not eliminate or reduce that exclusion. The Triggering Party, its Acquired Technology, and any combined, derivative, successor, rebranded, or replacement system incorporating or benefiting from that Acquired Technology remain excluded unless L&A expressly grants access in a signed writing.

A non-triggering acquirer does not become eligible with respect to those assets merely by acquiring, financing, controlling, renaming, relocating, integrating, or commercializing them.

9.12(f) Anti-Circumvention

No person may use an affiliate, shell entity, nominee, distributor, dealer, integrator, contract manufacturer, white-label arrangement, joint venture, special-purpose vehicle, asset purchase, stock purchase, license, financing arrangement, or other intermediary or transaction structure to obtain, preserve, or extend rights that would otherwise be excluded, suspended, non-transferable, or unavailable under this License.

9.12(g) Express Written Authorization Required

Only a writing signed by an authorized officer of Laudando & Associates LLC that identifies the applicable party and Acquired Technology may grant continuation or post-transaction eligibility under this Section.

L&A may condition authorization on technical provenance and product identification, reporting and audit obligations, payment or resolution of past royalties, claims, damages, and enforcement costs, non-sublicensing terms, safety and compliance requirements, or other commercially reasonable conditions.

Negotiations, diligence, receipt of notice, disclosure of materials, public availability, a course of dealing, delay, silence, failure to object, or acceptance of a royalty report or payment shall not create authorization, an implied license, a waiver, or estoppel.

9.13 Preservation of Commercial Exclusion Clause and Existing Court Orders

The Strategic Access Fallback and Conditional Patent License is expressly subject to the Commercial Exclusion Clause, including any applicable preliminary injunction, court order, export-control restriction, sanctions rule, or binding legal prohibition.

Nothing in this Strategic Access Fallback shall be interpreted to require Laudando & Associates LLC, any licensee, or any user to violate an existing court order, injunction, export-control restriction, sanctions rule, or binding legal prohibition.

Nothing in this License shall be interpreted to authorize Laudando & Associates LLC, any licensee, any commercial user, or any third party to violate the preliminary injunction entered by the U.S. District Court for the Eastern District of California in Case No. 2:24-cv-03012-DAD-JDP, or any other binding order applicable to L&Aser Alpha, L&Aser Beta, L&Aser Beta+, or any covered embodiment.

To the extent any court order restricts commercialization of a specific embodiment, geography, party, transaction structure, or product version, the Strategic Access Fallback shall operate only to the maximum lawful extent outside the restricted scope and shall remain effective for unrestricted jurisdictions, embodiments, parties, research pathways, and commercialization pathways.

9.14 No Trademark or Certification Grant

The Strategic Access Fallback does not grant any right to use the L&Aser™ name, L&Aser™ logo, Laudando & Associates LLC name, certification marks, endorsement, branding, or affiliation language without separate written authorization.

9.15 No Waiver

Activation of the Strategic Access Fallback does not waive any claim, defense, patent right, copyright, trade secret, contractual right, commercial licensing right, damages claim, injunction right, audit right, or enforcement right held by Laudando & Associates LLC.

The fallback is an access mechanism, not a surrender of ownership.

Disclaimer and Limitation of Liability

THE SOFTWARE, FIRMWARE, AND HARDWARE ARE PROVIDED “AS IS”, WITHOUT WARRANTY OF ANY KIND. IN NO EVENT SHALL THE COPYRIGHT HOLDER BE LIABLE FOR ANY CLAIM, DAMAGES, OR OTHER LIABILITY, WHETHER IN AN ACTION OF CONTRACT, TORT OR OTHERWISE.

Termination

This license is automatically terminated if you fail to comply with any of its terms.

Termination does not relieve you of the obligations to disclose your source code under the scope of prior use.

Termination does not waive any patent right, royalty obligation, reporting obligation, audit right, damages claim, injunction right, or other enforcement right held by Laudando & Associates LLC.

Additional Terms & Conditions for Open Commercial Licensing

Small OEMs Under \$10M Annual Revenue

1. Automatic Termination Upon Exceeding Revenue Threshold

This License shall automatically terminate without notice if Licensee's annual gross revenue derived, directly or indirectly, from agricultural automation products or services including the Licensed Technology exceeds Ten Million U.S. Dollars (USD \$10,000,000) in any calendar year.

For the purposes of calculating this threshold, all revenue of Licensee and its affiliates, subsidiaries, parent companies, or any entities under common control shall be aggregated.

Upon such termination, Licensee must immediately cease all use of the Licensed Technology, destroy or return all copies thereof, and certify compliance in writing to Licensor within thirty (30) days.

At Licensor's sole discretion, Licensee may transition to an applicable commercial license tier under Licensor's then-current terms.

2. Audit Rights

Licensor shall have the right, upon thirty (30) days' prior written notice, to audit Licensee's books, records, and accounts, including those of its affiliates, subsidiaries, and parent companies, as reasonably necessary to verify compliance with the revenue threshold and other terms of this License.

Such audits shall be conducted no more than once per calendar year, during normal business hours, and in a manner designed to minimize disruption of Licensee's business.

If an audit reveals that Licensee has exceeded the revenue threshold without transitioning to an applicable commercial license tier, or has otherwise materially breached this License, Licensee shall reimburse Licensor for all audit costs in addition to any fees, damages, or remedies due under this License.

3. No Sublicense, Assignment, or Change-of-Control Transfer

Licensee shall not sublicense, assign, transfer, or otherwise convey any rights granted under this License to any third party, whether directly, indirectly, voluntarily, involuntarily, by operation of law, or through a Covered Transaction, without the prior written consent of Licensor.

For purposes of this Section, any Covered Transaction under Section 9.12, including a merger, consolidation, change of control, sale of substantially all assets, stock or equity acquisition, or acquisition of Licensee by a third party, is deemed an assignment and transfer requiring Licensor's prior written consent, regardless of whether Licensee survives the transaction as the same legal entity.

Any attempt to sublicense, assign, transfer, or otherwise convey such rights without Licensor's express written consent shall be null and void and shall constitute a material breach of this License, resulting in immediate termination.

For the avoidance of doubt, this prohibition includes but is not limited to sublicensing, assignment, transfer, or change of control involving any competitor of Licensor, including large agricultural equipment manufacturers, including John Deere; agrochemical companies, including Bayer; startup incubators, including The Reservoir; or affiliates thereof, including Western Growers, Taylor Farms, Tanimura & Antle, and Naturipe Berry Growers.

4. Step-Up License Path

In the event that Licensee's annual revenue attributable to agricultural automation products, including L&Aser revenues, exceeds the \$10M threshold, Licensee may elect to transition into a higher commercial license tier offered by Licensor.

a. Notice Requirement

Licensee must provide written notice to Licensor within thirty (30) days of crossing the \$10M revenue threshold.

b. Grace Period

Upon such notice, Licensee shall have ninety (90) days to execute a commercial license agreement with Licensor under the then-current terms for higher-tier licensees.

c. Continuity of Rights

During the grace period, Licensee may continue to use the Licensed Technology without interruption, provided Licensee is actively engaged in good-faith negotiations with Licensor for a step-up license.

d. Failure to Transition

If Licensee fails to execute a commercial license within the grace period, all rights granted under this License shall automatically terminate, and Licensee shall immediately cease use of the Licensed Technology.

Commercial Licensing

Open & Tiered

If you wish to:

- Use the L&Aser™ Software, Firmware, or Hardware in a proprietary system;
- Embed any of the same, or derivatives of the same, into a commercial agricultural product;
- Offer it as part of a paid farming or field service;
- Practice the L&Aser™ Patent in commercial farming operations;
- Manufacture, sell, lease, import, deploy, or commercially benefit from L&Aser™ or any covered derivative;

you must obtain a commercial use license from:

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